

OFFICE OF THE SECRETARY

PO Box 942883

Sacramento, CA 94283-0001



October 16, 2019

The Honorable James L. Long
Judge of the Superior Court
County of Sacramento
720 Ninth Street
Sacramento, CA 95814

Re: Mbulu Mahki Johnson
CDCR No: W90224
Case No: 99F07596
Date of Sentence: May 16, 2001

Dear Honorable James L. Long:

The purpose of this letter is to provide the court with the authority to resentence inmate Johnson, W90224 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

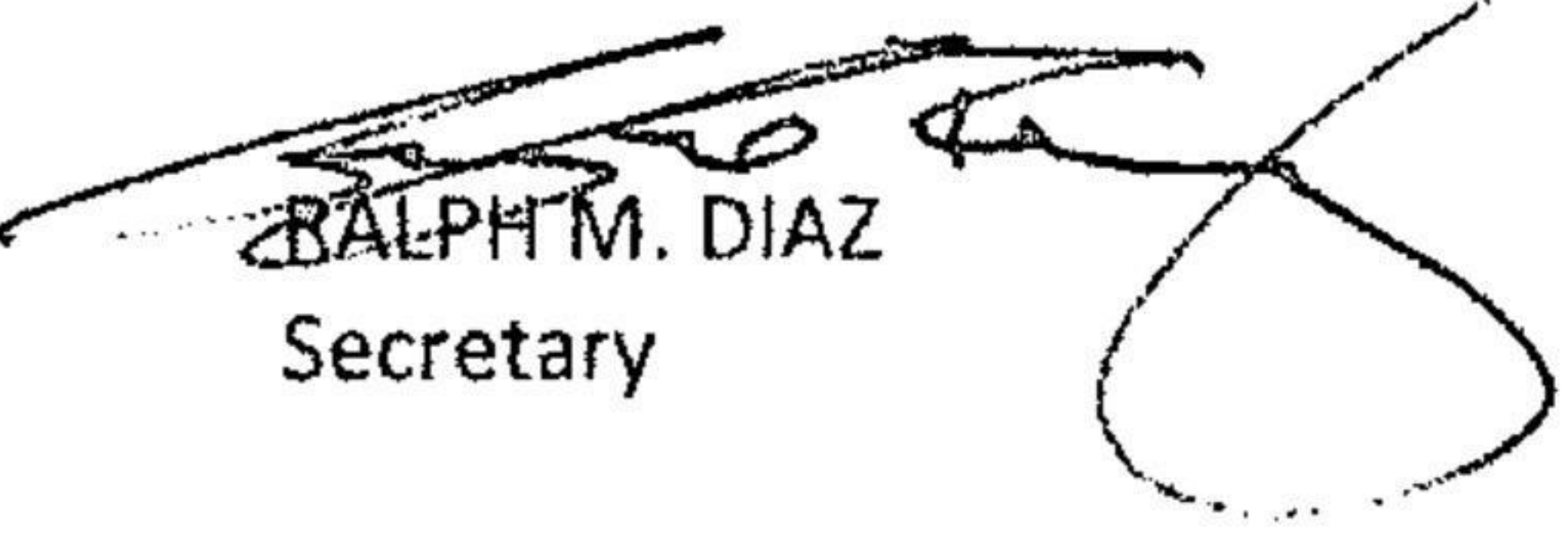
As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Johnson is commended for remaining disciplinary free since 2010. She has continuously programmed and fully participated in rehabilitative programs available to her. She is currently involved in the following self-help groups: Freedom to Choose, Reentry Preparation Lifer group, Narcotics Anonymous (NA) Fellowship, Roots and Wings Project, Expressive Therapeutic Art, Family Relations, and The Urban Ministry Institute.

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Having reviewed the enclosed documentation it appears that inmate Johnson's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that she be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Honorable David De Alba, Presiding Judge
Sacramento County District Attorney's Office
Sacramento County Public Defender's Office